

**IN THE HIGH COURT OF JHARKHAND AT RANCHI
B.A. NO.4541 OF 2020**

Vijay Shankar Singh		Petitioner
	Versus	
The State of Jharkhand		Opposite Party

CORAM: HON'BLE MR. JUSTICE DEEPAK ROSHAN

For the Petitioner	: Mr. K.S.Nanda, Advocate
For the State	: Mr. Rajneesh Vardhan, A.P.P

02/Dated: 07/08/2020

Heard learned counsel for the parties through V.C.

2. Learned counsel for the petitioner undertakes to remove the defects as pointed out by the registry within a period of four weeks.

3. The instant application has been preferred by the petitioner for grant of regular bail in connection with Dumri P.S. Case No.17 of 2015, corresponding to G.R. No.1040 of 2015, registered under Sections 406, 409, 467, 468, 469, 470, 471, 420, 120B of the IPC, which is pending before the learned Additional Chief Judicial Magistrate, Gumla.

4. Learned counsel for the petitioner contended that the petitioner has been falsely implicated in this case. He further submits that the co-accused, namely, Mr. Randhir Kumar who was the field engineer and given its report for verification to this petitioner who sanctioned the amount, has already been granted anticipatory bail by a Co-ordinate Bench in A.B.A. No.5050 of 2018. He further submits that the petitioner is a retired person and he is lying in jail custody since 20.02.2020 and since charge-sheet has already been submitted there is no chance of tampering with the evidence.

5. Learned A.P.P. on the other hand opposed the prayer for bail of the petitioner, however could not dispute the fact that the other co-accused, who was the field engineer and submitted its report to this petitioner, has already been granted anticipatory bail by this Court.

6. Having regard to the facts of the case, the petitioner is directed to be released on bail. At present, the petitioner shall be released on furnishing personal bail bond of Rs.5,000/- (Five Thousand Only), thereafter, when the Lockdown period is over, the petitioner shall furnish bail bond of Rs. 10,000/- (Ten Thousand Only) with two sureties of the like amount each to the satisfaction of learned Additional Chief Judicial Magistrate, Gumla, in connection with Dumri P.S. Case No.17 of 2015, corresponding to G.R. No.1040 of 2015, within a period of one month from the date of lifting of Lockdown.

7. Further, the petitioner shall appear on each and every date during trial before the learned trial court whenever the functioning of regular court begins till then, the petitioner shall register his presence before the concerned police station fortnightly, failing which the learned trial court shall be at liberty to cancel his bail.

8. With the aforesaid directions, this bail application is allowed and disposed of.

(Deepak Roshan, J.)

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